

An Act

ENROLLED HOUSE
BILL NO. 4326

By: Moore, Archer and Deck of
the House

and

Seifried and Bullard of the
Senate

An Act relating to the Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which relates to eligibility requirements; conforming language; clarifying eligibility for students adopted at certain age; expanding eligibility for students in the court-ordered custody of certain child-placing agency or a federally recognized Indian tribe; modifying defined term; clarifying certain definition; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), which relates to student agreements; extending age by which a student may qualify; conforming language; updating statutory references; removing income limitation for students placed in certain custody during certain grades; directing the Oklahoma State Regents for Higher Education to verify certain certification of certain parents; modifying defined term; modifying definition; clarifying eligibility requirements for children of certain teachers; directing the State Regents to promulgate certain rules; providing an effective date; and declaring an emergency.

SUBJECT: Oklahoma Higher Learning Access Program

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), is amended to read as follows:

Section 2603. A. Except as otherwise provided for in subsection B of this section and elsewhere in this section, to be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment, a student shall:

1. Be a resident of this state or be enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title;

2. Be a United States citizen or lawfully present in the United States. A student who is not a United States citizen or lawfully present in the United States shall not be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award notwithstanding the provisions of Section 3242 of this title. The provisions of this paragraph shall not apply to any student who was enrolled in the Oklahoma Higher Learning Access Program prior to the end of the 2006-2007 school year;

3. Have a record of satisfactory compliance with agreements executed pursuant to Section 2605 of this title;

4. a. Have graduated within the previous three (3) years from a high school accredited by the State Board of Education or the Oklahoma School of Science and Mathematics with a minimum 2.5 cumulative grade point average on a 4.0 scale for all work attempted in grades nine through twelve,
- b. Have graduated within the previous three (3) years from a high school not accredited by the State Board of Education with a minimum 2.5 cumulative grade point average on a 4.0 scale for all work attempted in grades nine through twelve and have achieved a composite score of 22 or higher on the ACT test, or
- c. Have satisfactorily completed within the previous three (3) years an educational program that was

provided through a means other than a public or private school and have achieved a composite score of 22 or higher on the ACT test;

5. Have completed the curricular requirements for admission to an institution within The Oklahoma State System of Higher Education or have completed the core curriculum and be seeking admission to a technology center school governed by the State Board of Career and Technology Education. Students shall also have attained a 2.5 grade point average in the ~~core~~ Oklahoma's Promise required curriculum courses. Students who attended a high school which did not offer all the ~~core~~ Oklahoma's Promise required curriculum courses or students who were educated by other means and were not offered all the ~~core~~ Oklahoma's Promise required curriculum courses shall be allowed to satisfy this curriculum requirement by participating in a program approved by the Oklahoma State Regents for Higher Education for remediation of high school curricular deficiencies;

6. Have satisfied admission standards as determined by the Oklahoma State Regents for Higher Education for first-time-entering students for the appropriate type of institution, or, if attending a private institution, have satisfied admission standards as determined by the private institution. No student participating in the Oklahoma Higher Learning Access Program shall be admitted into an institution of higher education by special admission standards;

7. Have secured admission to, and enrolled in, an institution which is a member of The Oklahoma State System of Higher Education, a postsecondary vocational-technical program offered by a technology center school that meets the requirements to be eligible for federal student financial aid, or a private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title; and

8. a. Have established financial need according to the provisions of subsection D of Section 2605 of this title and standards and provisions promulgated by the Oklahoma State Regents for Higher Education,
- b. If the student was adopted between birth and twelve (12) years of age while in the permanent custody of the Oklahoma Department of Human Services, in the court-ordered custody of a ~~licensed~~ private nonprofit child-placing agency licensed by the Oklahoma Department of Human Services, or federally recognized

Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, have established financial need according to the provisions of paragraph 1 of subsection E of Section 2605 of this title and standards and provisions promulgated by the Oklahoma State Regents for Higher Education,

- c. If the student was adopted ~~between~~ after reaching thirteen (13) years of age and seventeen (17) prior to reaching eighteen (18) years of age while in the permanent custody of the Oklahoma Department of Human Services, in the court-ordered custody of a licensed private nonprofit child-placing agency licensed by the Oklahoma Department of Human Services, or federally recognized Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, have established financial need according to the provisions of paragraph 2 of subsection E of Section 2605 of this title and standards and provisions promulgated by the Oklahoma State Regents for Higher Education,
- d. ~~If the student was placed~~ Was in the custody of the Oklahoma Department of Human Services, in the court-ordered custody of a private nonprofit child-placing agency licensed by the Oklahoma Department of Human Services, or federally recognized Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, at any time during the eighth, ninth, tenth, or eleventh grade and enrolls in the program no later than his or her official date of high school graduation, ~~have established financial need according to the provisions of paragraph 3 of subsection E of Section 2605 of this title and~~ any additional requirements according to the standards and provisions promulgated by the Oklahoma State Regents for Higher Education, or
- e. If the student is the child of a certified ~~classroom~~ teacher and meets the provisions of paragraph ~~5~~ 4 of subsection E of Section 2605 of this title. For the purposes of this paragraph, ~~"certified classroom teacher"~~ "certified teacher" shall have the same meaning as provided in subparagraph d of paragraph ~~5~~ 4 of subsection E of Section 2605 of this title. A certified teacher shall be considered the parent of a

student if the certified teacher is the natural or adoptive parent or the permanent legal guardian of the student.

B. 1. A student shall be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment if the student meets all of the following criteria:

- a. is a child of any person killed after January 1, 2000, in the line of duty in any branch of the United States Armed Forces or who died after January 1, 2000, as a result of an injury sustained while in the line of duty in any branch of the United States Armed Forces and the person who was killed or died filed an individual or joint Oklahoma income tax return for the tax year prior to the year during which the person was killed or died,
- b. is a resident of this state or is enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title,
- c. enrolls in an institution within The Oklahoma State System of Higher Education prior to reaching the age of twenty-one (21),
- d. has satisfied admission standards as determined by the Oklahoma State Regents for Higher Education for first-time-entering students for the appropriate type of institution, or, if attending a private institution, has satisfied admission standards as determined by the private institution. No student participating in the Oklahoma Higher Learning Access Program shall be admitted into an institution of higher education by special admission standards,
- e. has secured admission to, and enrolled in, an institution which is a member of The Oklahoma State System of Higher Education, a postsecondary vocational-technical program offered by a technology

center school that meets the requirements to be eligible for federal student financial aid, or a private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title, and

- f. executes an agreement pursuant to subsection C of Section 2605 of this title.

2. A student who is eligible to participate in the program pursuant to this subsection shall not be required to meet the eligibility requirements set forth in subsection A of this section.

C. To retain eligibility while pursuing the program of higher learning in which enrolled, the student shall:

1. Meet the requirements for retention and degree completion as established by the institution in which the student is enrolled;

2. Maintain good academic standing and satisfactory academic progress according to standards of the Oklahoma State Regents for Higher Education;

3. Maintain satisfactory academic progress as required for eligibility for federal Title IV student financial aid programs. The provisions of this paragraph shall become effective for the 2012-2013 school year;

4. Comply with the standards related to maintenance of eligibility as promulgated by the Oklahoma State Regents for Higher Education; and

5. Refrain from conduct that leads to expulsion or suspension of more than one semester from an institution of higher education. A student who violates the provisions of this paragraph shall permanently lose eligibility for program benefits. The provisions of this paragraph shall become effective January 1, 2008.

D. The Oklahoma State Regents for Higher Education and the State Board of Career and Technology Education shall promulgate rules relating to maintenance of eligibility under the Oklahoma Higher Learning Access Act by a student.

E. It is the intent of the Legislature that students in the ninth grade for the 1992-93 school year who are determined to be

eligible Oklahoma Higher Learning Access students pursuant to the Oklahoma Higher Learning Access Act shall be the first students eligible for benefits from the Oklahoma Higher Learning Access Trust Fund.

F. The Oklahoma State Regents for Higher Education are authorized to study, develop, and propose criteria for determining award eligibility based upon the completion of seven semesters of high school coursework by a student.

SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), is amended to read as follows:

Section 2605. A. Each school year, every fifth- through eleventh-grade student in the public and private schools of this state and students who are educated by other means and are in the equivalent of the fifth through eleventh grade shall be apprised, together with the parent, custodial parent, or guardian of the student, of the opportunity for access to higher learning under the Oklahoma Higher Learning Access Program. The Oklahoma State Regents for Higher Education and the State Board of Education shall develop, promote, and coordinate a public awareness program to be utilized in making students and parents aware of the Oklahoma Higher Learning Access Program.

B. On a form provided by the Oklahoma State Regents for Higher Education, every public school district shall designate at least one Oklahoma Higher Learning Access Program contact person, who shall be a counselor or teacher, at each public school site in this state in which eighth-, ninth-, tenth-, or eleventh-grade classes are taught. When requested by the State Regents, the State Board of Education shall assist the State Regents to ensure the designation of contact persons. Private schools shall also designate at least one school official as a contact person. For students who are educated by other means, a parent or guardian or other person approved by the State Regents shall be designated the contact person.

C. 1. Students who qualify on the basis of financial need according to subsection D or E of this section or who meet the eligibility qualification set forth in subparagraph d of paragraph 8 of subsection A of Section 2603 of this title or in subparagraph a of paragraph 1 of subsection B of Section 2603 of this title no later than December 31 of their twelfth-grade year or prior to reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on

the basis of the standards and provisions promulgated by the Oklahoma State Regents for Higher Education shall be given the opportunity ~~throughout the eighth-, ninth-, tenth-, and eleventh-grade years and no later than December 31 of the twelfth-grade year, for students enrolled in a public or private school, or between the ages of thirteen (13) and seventeen (17), for students who are educated by other means, to enter into participation in the program by agreeing to, throughout the remainder of their school years or educational~~ to enter into participation in the program:

a. for students enrolled in a public or private school, throughout the eighth-, ninth-, tenth-, and eleventh-grade years and prior to:

(1) December 31 of the twelfth-grade year, or

(2) the official date of high school graduation, whichever occurs first, and

b. for students educated by other means after reaching thirteen (13) years of age and prior to:

(1) reaching eighteen (18) years of age, or

(2) the date of completion of their educational program, whichever occurs first.

2. Students who qualify on the basis of financial need according to subsection D or E of this section or who meet the eligibility qualification set forth in subparagraph d of paragraph 8 of subsection A of Section 2603 of this title or in subparagraph a of paragraph 1 of subsection B of Section 2603 of this title shall enter into participation in the program by agreeing throughout the remainder of their school years or educational program to:

a. attend school or an educational program regularly and do homework regularly,

b. refrain from substance abuse,

c. refrain from commission of crimes or delinquent acts,

d. have school work and school records reviewed by mentors designated pursuant to the program,

- e. provide information requested by the Oklahoma State Regents for Higher Education or the State Board of Education, and
- f. participate in program activities.

~~2.~~ 3. Students who meet the eligibility qualification set forth in subparagraph a of paragraph 1 of subsection B of Section 2603 of this title after December 31 of their twelfth-grade year or after reaching the age of eighteen (18) shall be given the opportunity prior to reaching the age of twenty-one (21) to enter into participation in the program and shall execute an agreement with provisions as determined by the Oklahoma State Regents for Higher Education.

~~3.~~ 4. The contact person shall maintain the agreements, which shall be executed on forms provided by the Oklahoma State Regents for Higher Education and managed according to regulations promulgated by the Oklahoma State Regents for Higher Education, and the contact person shall monitor compliance of the student with the terms of the agreement. The Oklahoma State Regents for Higher Education are authorized to process student agreements and verify compliance with the agreements. Students failing to comply with the terms of the agreement shall not be eligible for the awards provided in Section 2604 of this title.

~~4.~~ 5. The Oklahoma State Regents for Higher Education may provide an exception to the age limits provided for in paragraphs 1 and ~~2~~ 3 of this subsection pursuant to subsection L of this section.

~~5.~~ 6. Notwithstanding the provisions of Sections 5-132 and 5-132.1 of this title, a student who is age twenty-one (21) or older shall not be eligible to enter into participation in the program.

D. Except as otherwise provided for in subsection E of this section and except for students who qualify pursuant to subsection B of Section 2603 of this title, a student shall not be found to be in financial need for purposes of the Oklahoma Higher Learning Access Program if:

1. Beginning with eighth-, ninth-, or tenth-grade students who are enrolled in a public or private school or students between the ages of thirteen (13) and fifteen (15) who are educated by other means who apply for participation in the program in the 2017-2018

school year, the federal adjusted gross income of the student's parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade students who are enrolled in a public or private school or students between the ages of thirteen (13) and sixteen (16) who are educated by other means who apply for participation in the program in the 2021-2022 school year, the federal adjusted gross income of the student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per year;

3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade students who are enrolled in a public or private school or students between the ages of thirteen (13) and sixteen (16) who are educated by other means who apply for participation in the program in the 2022-2023 school year:

- a. the federal adjusted gross income of the student's parent(s), who have two or fewer dependent children, exceeds Sixty Thousand Dollars (\$60,000.00) per year,
- b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or
- c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4. Beginning with ~~eighth-, ninth-, tenth-, or eleventh-grade~~ students ~~or twelfth-grade students no later than December 31 of~~ their twelfth-grade year who are enrolled in a public or private school or students between the ages of thirteen (13) and seventeen (17) who are educated by other means who apply for participation in the program in the 2025-2026 school year:

- a. the federal adjusted gross income of the student's parent(s), who have two or fewer dependent children, exceeds Sixty Thousand Dollars (\$60,000.00) per year,
- b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

- c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

5. Beginning with the 2018-2019 academic year, prior to receiving any Oklahoma Higher Learning Access Program benefit award for any year during which the student is enrolled in an institution which is a member of The Oklahoma State System of Higher Education, a postsecondary vocational-technical program offered by a technology center school that meets the requirements to be eligible for federal student financial aid, or a private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title, the federal adjusted gross income of the student's parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per year.

The determination of financial qualification as set forth in this paragraph shall be based on the income of the student, not the income of the parent(s), if a student:

- a. is determined to be independent of the student's parents for federal financial aid purposes at the time of application,
- b. was in the permanent custody of the Oklahoma Department of Human Services at the time the student enrolled in the program, or
- c. was in the court-ordered custody of a federally recognized Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, at the time the student enrolled in the program.

The provisions of this paragraph shall apply to any student who has received an Oklahoma Higher Learning Access Program benefit award after the 2017-2018 school year; and

6. The Oklahoma State Regents for Higher Education shall review the determination of financial qualification as set forth in paragraphs 1, 2, 3, and 4 of this subsection if the income from taxable and nontaxable sources of the student's parent(s) includes income received from nontaxable military benefits or income received from the federal Social Security Administration due to the death or disability of the student's parent(s). If the income from taxable

and nontaxable sources of the student's parent(s), excluding income received from nontaxable military benefits or income received from the federal Social Security Administration due to the death or disability of the student's parent(s), does not exceed the limitations set forth by paragraphs 1, 2, 3, and 4 of this subsection, the student shall be determined to have met the financial qualification set forth in paragraphs 1, 2, 3, and 4 of this subsection.

E. 1. A student who was adopted between birth and twelve (12) years of age while in the permanent custody of the Oklahoma Department of Human Services, in the court-ordered custody of a ~~licensed~~ private nonprofit child-placing agency licensed by the Oklahoma Department of Human Services, or federally recognized Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, shall not be found to be in financial need for purposes of the Oklahoma Higher Learning Access Program if at the time the student begins postsecondary education and prior to receiving any Oklahoma Higher Learning Access Program benefit award, the federal adjusted gross income of the student's parent(s) exceeds One Hundred Fifty Thousand Dollars (\$150,000.00) per year. The provisions of this paragraph shall not apply to any student who has received an Oklahoma Higher Learning Access Program benefit award prior to the 2012-2013 school year.

2. A student who was adopted ~~between~~ after reaching thirteen (13) years of age and seventeen (17) prior to reaching eighteen (18) years of age while in the permanent custody of the Oklahoma Department of Human Services, in the court-ordered custody of a ~~licensed~~ private nonprofit child-placing agency licensed by the Oklahoma Department of Human Services, or federally recognized Indian tribe, as defined by the federal Indian Child Welfare Act of 1978, shall not be found to be in financial need for purposes of the Oklahoma Higher Learning Access Program if at the time the student begins postsecondary education and prior to receiving any Oklahoma Higher Learning Access Program benefit award, the federal adjusted gross income of the student's parent(s) exceeds Two Hundred Thousand Dollars (\$200,000.00) per year. The provisions of this paragraph shall not apply to any student who has received an Oklahoma Higher Learning Access Program benefit award prior to the 2012-2013 school year.

3. ~~A student who was placed in the custody of the Department of Human Services at any time during the eighth, ninth, tenth, or eleventh grade and enrolls in the program no later than his or her~~

~~official date of high school graduation shall not be found to be in financial need for purposes of the Oklahoma Higher Learning Access Program if the federal adjusted gross income of the student exceeds Sixty Thousand Dollars (\$60,000.00) per year.~~

~~4.~~ Except for students who qualify pursuant to subparagraph d of paragraph 8 of subsection A and subsection B of Section 2603 of this title, the determination of financial qualification as set forth in this subsection shall be based on the income of the student, not the income of the parent(s), if the student is determined to be independent of the student's parent(s) for federal financial aid purposes at the time of application. A determination of financial qualification shall not be required for the student who meets the criteria set forth in this subsection at the time the student applies for participation in the program. The provisions of this paragraph shall not apply to any student who has received an Oklahoma Higher Learning Access Program benefit award prior to the 2008-2009 school year.

~~5.~~

4. a. A student who is the child of a certified ~~classroom~~ teacher at the time the student applies for participation in the Oklahoma Higher Learning Access Program shall not be found to be in financial need for the purposes of the Oklahoma Higher Learning Access Program if, beginning with eighth-, ninth-, tenth-, or eleventh-grade students or twelfth-grade students no later than December 31 of their twelfth-grade year who are enrolled in a public or private school or students ~~between~~ after reaching thirteen (13) years of age and seventeen (17) prior to reaching eighteen (18) years of age who are educated by other means who apply for participation in the program in the 2025-2026 school year, the household income of the student's parent(s) is equal to or greater than seven hundred percent (700%) of the federal poverty level (FPL).
- b. Prior to receiving any Oklahoma Higher Learning Access Program benefit award for any year during which the student is enrolled in an institution that is a member of The Oklahoma State System of Higher Education, a postsecondary vocational-technical program offered by a technology center school that meets the eligibility requirements for federal student financial aid, or a

private institution of higher learning located within this state and accredited pursuant to Section 4103 of this title, the household income of the parent(s) of a student who qualifies pursuant to this paragraph shall not be equal to or greater than seven hundred percent (700%) of the federal poverty level (FPL).

- c. The Oklahoma State Regents for Higher Education shall verify the full-time employment status of the student's parent(s) and the current standard or alternative certification in a classroom subject of the parents prior to a student who qualifies pursuant to this paragraph receiving any Oklahoma Higher Learning Access Program benefit award.
- d. For the purposes of this paragraph, ~~"certified classroom teacher"~~ "certified teacher" means a ~~certified,~~
 - (1) full-time classroom teacher who has a standard or alternative certificate to teach issued by the State Board of Education, teaches a classroom subject as determined by the State Regents, and who has been employed as a teacher in a public school district classroom in this state for a minimum of ten (10) years prior to his or her child applying for participation in the program,
 - (2) full-time counselor, librarian, school nurse, or athletic trainer who has a standard or alternative certificate to teach issued by the State Board of Education if employed by a public school district or a technology center school district in this state and otherwise fulfills the requirements of this paragraph, and
 - (3) full-time classroom teacher who has a standard or alternative certificate to teach issued by the State Board of Education who is employed to teach kindergarten through twelfth-grade public school students at a technology center school district in this state if the teacher is employed to teach at least one fall and one spring semester class per academic year that provides free public education to at least one kindergarten through

twelfth-grade student and if the teacher otherwise fulfills the requirements of this paragraph.

- e. The certified teacher ~~is~~ shall not be required to have been employed by the same public school district for ten (10) consecutive years and the ten (10) years of employment shall not be required to be consecutive. However, the ten (10) years of employment shall have occurred in the last twenty (20) years.
- f. Certified ~~classroom~~ teacher does not mean a certified teacher who is employed as a school district superintendent, principal, or any other position within the administration of a public school district when his or her child applies for participation in the program or prior to his or her child receiving any Oklahoma Higher Learning Access Program benefit award.
- g. Employment as a teacher with an emergency or provisional certificate shall not qualify for the employment requirements of this paragraph.

F. The financial qualification of a student as set forth in subsections D and E of this section shall be certified by the contact person or by the Oklahoma State Regents for Higher Education on the agreement form provided by the Oklahoma State Regents for Higher Education. The form shall be retained in the permanent record of the student and a copy forwarded to the Oklahoma State Regents for Higher Education.

G. Agreements shall be witnessed by the parent, custodial parent, or guardian of the student, who shall further agree to:

1. Assist the student in achieving compliance with the agreements;
2. Confer, when requested to do so, with the school contact person, other school personnel, and program mentors;
3. Provide information requested by the Oklahoma State Regents for Higher Education or the State Board of Education; and
4. Assist the student in completing forms and reports required for program participation, making applications to institutions and

schools of higher learning, and filing applications for student grants and scholarships.

H. The Oklahoma State Regents for Higher Education shall promulgate rules for Oklahoma's Promise related to applications, parentage and guardianship, income documentation requirements, and the determination of student compliance with agreements made pursuant to this section.

I. The Oklahoma State Regents for Higher Education shall designate personnel to coordinate tracking of program records for the years when students participating in the program are still in the schools or are being educated by other means, provide staff development for contact persons in the schools, and provide liaison with the State Board of Education and local organizations and individuals participating in the program.

J. The school district where an Oklahoma Higher Learning Access Program student is enrolled when the student begins participation in the program and any subsequent school district where the student enrolls shall forward information regarding participation by the student in the program to a school to which the student transfers upon the request of the school for the records of the student.

K. Students participating in the Oklahoma Higher Learning Access Program shall provide their Social Security number or their student identification number used by their school to the Oklahoma State Regents for Higher Education. The State Regents shall keep the numbers confidential and use them only for administrative purposes.

L. The State Regents may provide an exception to the age limits provided for in paragraphs 1 and ~~2~~ 3 of subsection C of this section to a student due to hardship circumstances and allow an application to the Oklahoma Higher Learning Access Program for twelfth-grade students enrolled in a public or private school and students who are educated by other means and are in the equivalent of twelfth grade. Provided, however, the exception due to hardship circumstances shall not apply to:

1. A student enrolled in a public or private school after the student's official date of high school graduation;

2. A student educated by other means who is age nineteen (19) or older; or

3. Any student who is age twenty-one (21) or older.

The Oklahoma State Regents for Higher Education shall promulgate rules to implement the provisions of this subsection.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____